RIGHTS AND LIABILITIES OF THE GOVERNMENT

LEGAL PERSONALITY → PROPERTY → CONTRACT → SUITS → TORT → ARTICLE 300A → SECRECY → REMEDY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

◆ PRIMARY CORE FLOW ◆ SUBORDINATE EXTRA ◆ APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

00 GOVERNMENT AS PROPERTY-HOLDER, CONTRACTOR AND SUABLE LEGAL PERSON

GOVERNMENT AS PROPERTY-HOLDER, CONTRACTOR AND SUABLE LEGAL PERSON · ROOT QUESTION · HOW CAN THE STATE EXERCISE PUBLIC POWER YET REMAIN · PART XII, CHAPTER III · ARTICLES 294-297 · SUCCESSION, OWNERLESS AND MARITIME PROPERTY · ARTICLE 298 · TRADE, BUSINESS, PROPERTY AND CONTRACT CAPACITY

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How can the State exercise public power yet remain answerable as a legal actor?
- PART XII, CHAPTER III

POWER / PROCEDURE

- Articles 294-297 — succession, ownerless and maritime property
- Article 298 — trade, business, property and contract capacity
- Article 299 — mandatory government-contract form

CHECK / LIMIT

- Article 300 — suits, proceedings and liability continuity.
- SEPARATE LINK
- Article 300A — private property may be deprived only by authority of law.

FEDERAL / RIGHTS IMPACT

- MASTER DISTINCTION official personal protection != governmental immunity from review or liability.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 298 governs governmental property capacity and Article 300A protects against deprivation without law, but neither substitutes for contract or suit provisions.

01 SUCCESSION, OWNERLESS PROPERTY AND REORGANISATION

SUCCESSION, OWNERLESS PROPERTY AND REORGANISATION · ARTICLES 294-295 COMMENCEMENT CONTINUITY · UNION/STATE SUCCEEDS TO PROPERTY, RIGHTS AND LIABILITIES · ARTICLE 296 ESCHEAT/LAPSE/BONA VACANTIA · LOCATION RULE + GOVERNMENTAL-PURPOSE PROVISO · ARTICLE 297 SPECIFIED MARITIME LANDS, MINERALS AND RESOURCES · LATER REORGANISATION STATUTE/AGREEMENT · ASSETS + DEBT + GUARANTEES + EMPLOYEES

ARTICLES 294-295 commencement continuity → Union/State succeeds to property, rights and liabilities.

ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental-purpose proviso. → ARTICLE 297 specified maritime lands, minerals and resources → Union. → LATER REORGANISATION statute/agreement → assets + debt + guarantees + employees

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLES 294-295 commencement continuity → Union/State succeeds to property, rights and liabilities.
- ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental-purpose proviso.

POWER / PROCEDURE

- ARTICLE 297 specified maritime lands, minerals and resources → Union.
- LATER REORGANISATION statute/agreement → assets + debt + guarantees + employees

CHECK / LIMIT

- contracts/licences + records + pending proceedings.
- TRAP no universal apportionment formula: use the exact reorganisation instrument.

FEDERAL / RIGHTS IMPACT

- ARTICLES 294-295 commencement continuity → Union/State succeeds to property, rights and liabilities.
- ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental-purpose proviso.

MECHANISM / VERDICT — ARTICLE 296 escheat/lapse/bona vacantia → location rule + governmental-purpose proviso.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 294 and 295 manage constitutional commencement, while later territorial reorganisation allocates assets, liabilities and proceedings through the applicable statute or agreement.

02 ARTICLES 298 AND 299: CAPACITY BEFORE VALID COMMITMENT

ARTICLES 298 AND 299 · CAPACITY BEFORE VALID COMMITMENT · ARTICLE 298 EXECUTIVE CAPACITY TO TRADE, DO BUSINESS, ACQUIRE/HOLD/DISPOSE · ARTICLE 299 MANDATORY FORM EXPRESSED IN PRESIDENT/GOVERNOR'S NAME EXECUTED · VALID PUBLIC COMMITMENT · NO PERSONAL LIABILITY OF HEAD/AUTHORISED SIGNATORY. · TRAP CAPACITY · PERSONAL IMMUNITY

ARTICLE 298 executive capacity to trade, do business, acquire/hold/dispose property and contract.

ARTICLE 299 MANDATORY FORM expressed in President/Governor's name executed on behalf of that constitutional head → prescribed manner. → valid public commitment → no personal liability of head/authorised signatory.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 298 executive capacity to trade, do business, acquire/hold/dispose property and contract.
- ARTICLE 299 MANDATORY FORM expressed in President/Governor's name executed on behalf of that constitutional head authorised person and

POWER / PROCEDURE

- prescribed manner.
- valid public commitment → no personal liability of head/authorised signatory.

CHECK / LIMIT

- TRAP capacity != authority
- signature != authorisation

FEDERAL / RIGHTS IMPACT

- personal immunity != State immunity.
- ARTICLE 298 executive capacity to trade, do business, acquire/hold/dispose property and contract.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 294 and 295 preserve succession of public assets and liabilities, establishing the State as a juristic successor rather than personally liable officeholders.

03 DEFECTIVE CONTRACT AND RESTITUTION

DEFECTIVE CONTRACT AND RESTITUTION · ARTICLE 299 DEFECT PURPORTED CONTRACT UNENFORCEABLE AS GOVERNMENT CONTRACT. · INDEPENDENT SECTION 70 ROUTE LAWFUL ACT/DELIVERY + NON-GRATUITOUS INTENTION · RESTITUTION MEASURED BY BENEFIT. · B.K. MONDAL & SONS (1961) NON-GRATUITOUS BENEFIT CAN CREATE · MULAMCHAND V. STATE OF MADHYA PRADESH (1968) MANDATORY ARTICLE · LIMIT QUANTUM MERUIT DOES NOT VALIDATE THE CONTRACT OR

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 299 DEFECT purported contract unenforceable as government contract.	restitution measured by benefit.	Mulamchand v. State of Madhya Pradesh (1968) mandatory Article 299 form remains separate.	ARTICLE 299 DEFECT purported contract unenforceable as government contract.
INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit	B.K. Mondal & Sons (1961) non-gratuitous benefit can create restitutionary liability.	LIMIT quantum meruit does not validate the contract or automatically award contract price.	INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 299 DEFECT purported contract unenforceable as government contract.
- INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit

POWER / PROCEDURE

- restitution measured by benefit.
- B.K. Mondal & Sons (1961) non-gratuitous benefit can create restitutionary liability.

CHECK / LIMIT

- Mulamchand v. State of Madhya Pradesh (1968) mandatory Article 299 form remains separate.
- LIMIT quantum meruit does not validate the contract or automatically award contract price.

FEDERAL / RIGHTS IMPACT

- ARTICLE 299 DEFECT purported contract unenforceable as government contract.
- INDEPENDENT SECTION 70 ROUTE lawful act/delivery + non-gratuitous intention + government enjoys benefit

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Failure of Article 299 form can defeat contractual enforcement, but restitution may still prevent the State from retaining a non-gratuitous benefit unjustly.

04 ARTICLE 300 AND THE CIVIL-SUIT ROUTE

ARTICLE 300 AND THE CIVIL-SUIT ROUTE · PROPER PARTY · UNION MATTER · UNION OF INDIA · STATE MATTER · NAME OF STATE. · CPC SECTION 79 PARTY DESCRIPTION IN GOVERNMENT LITIGATION. · CPC SECTION 80 ORDINARY OFFICIAL-ACT SUIT

CONSTITUTIONAL BASIS / ARTICLE

- PROPER PARTY
- Union matter → Union of India
- State matter → name of State.

POWER / PROCEDURE

- CPC SECTION 79 party description in government litigation.
- CPC SECTION 80 ordinary official-act suit → two-month prior notice
- Section 80(2) court-controlled urgent/immediate-relief route.

CHECK / LIMIT

- PROCEEDING cause of action → correct party → notice/exception → pleading/evidence
- decree/appeal/enforcement subject to law.
- TRAP procedural notice != substantive sovereign immunity.

FEDERAL / RIGHTS IMPACT

- CPC SECTION 79 party description in government litigation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 296 allocates escheat, lapse and bona vacantia by territorial and governmental purpose, preventing ownerless property from remaining legally unvested.

05 PRIVATE TORT AND THE NARROWING OF SOVEREIGN IMMUNITY

PRIVATE TORT AND THE NARROWING OF SOVEREIGN IMMUNITY · P & O STEAM NAVIGATION (1861) COLONIAL SOVEREIGN/NON-SOVEREIGN DISTINCTION. · STATE OF RAJASTHAN V. VIDYAWATI (1962) ORDINARY OPERATIONAL NEGLIGENCE · KASTURI LAL V. STATE OF UTTAR PRADESH (1964) OLDER · N. NAGENDRA RAO & CO. (1994) BROAD IMMUNITY UNTENABLE · VERDICT NO BLANKET FORMULA · IDENTIFY FUNCTION, DUTY, CAUSATION AND REMEDY.

P & O Steam Navigation (1861) colonial sovereign/non-sovereign distinction. → State of Rajasthan v. Vidyawati (1962) ordinary operational negligence can attract State liability. → Kasturi Lal v. State of Uttar Pradesh (1964) older police-sovereign immunity line. → N. Nagendra Rao & Co. (1994) broad immunity untenable in welfare State; any residue is → VERDICT no blanket formula: identify function, duty, causation and remedy.

CONSTITUTIONAL BASIS / ARTICLE

- P & O Steam Navigation (1861) colonial sovereign/non-sovereign distinction.
- State of Rajasthan v. Vidyawati (1962) ordinary operational negligence can attract State liability.

POWER / PROCEDURE

- Kasturi Lal v. State of Uttar Pradesh (1964) older police-sovereign immunity line.
- N. Nagendra Rao & Co. (1994) broad immunity untenable in welfare State; any residue is narrow.

CHECK / LIMIT

- VERDICT no blanket formula: identify function, duty, causation and remedy.
- P & O Steam Navigation (1861) colonial sovereign/non-sovereign distinction.

FEDERAL / RIGHTS IMPACT

- State of Rajasthan v. Vidyawati (1962) ordinary operational negligence can attract State liability.
- Kasturi Lal v. State of Uttar Pradesh (1964) older police-sovereign immunity line.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Private-law sovereign immunity has narrowed as welfare-state functions expanded, but liability still depends on the governing facts, statute and current judicial doctrine.

06 CONSTITUTIONAL TORT AND VICARIOUS RESPONSIBILITY

CONSTITUTIONAL TORT AND VICARIOUS RESPONSIBILITY · PUBLIC-LAW COMPENSATION · RUDUL SAH V. STATE OF BIHAR (1983) · UNLAWFUL DETENTION COMPENSATION. · NILABATI BEHERA V. STATE OF ORISSA (1993) · FUNDAMENTAL-RIGHT REMEDY DISTINCT. · STATE OF ANDHRA PRADESH V. CHALLA RAMKRISHNA REDDY (2000) · PRISON-RIGHTS ACCOUNTABILITY.

PUBLIC-LAW COMPENSATION

Rudul Sah v. State of Bihar (1983) — unlawful detention compensation. → Nilabati Behera v. State of Orissa (1993) — Fundamental-Right remedy distinct. → State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000)

CONSTITUTIONAL BASIS / ARTICLE

- PUBLIC-LAW COMPENSATION
- Rudul Sah v. State of Bihar (1983) — unlawful detention compensation.
- Nilabati Behera v. State of Orissa (1993) — Fundamental-Right remedy distinct.

POWER / PROCEDURE

- State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000)
- prison-rights accountability.
- PRIVATE TORT duty + breach + causation + damage + vicarious-employment nexus.

CHECK / LIMIT

- OFFICIAL RESPONSIBILITY
- State liability may coexist with disciplinary, criminal or personal liability.
- LIMIT writ compensation vindicates rights; it does not replace every civil trial.

FEDERAL / RIGHTS IMPACT

- State of Andhra Pradesh v. Challa Ramkrishna Reddy (2000)

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional tort awards public-law compensation for established rights violations, but neither determines every private damages claim nor eliminates ordinary trial.

07 PROPERTY, PROCUREMENT, ARBITRATION AND PROTECTION BOUNDARIES

PROPERTY, PROCUREMENT, ARBITRATION AND PROTECTION BOUNDARIES · ARTICLE 300A DEPRIVATION OF PRIVATE PROPERTY ONLY BY AUTHORITY · PROCUREMENT RAIL NEED/SANCTION · FAIR CRITERIA/COMPETITION · REASONED AWARD · ARTICLE 299 EXECUTION · ARBITRATION VALID AUTHORISED CLAUSE · STATUTORY CHALLENGE/ENFORCEMENT.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 300A deprivation of private property only by authority of law.	ARBITRATION valid authorised clause → tribunal → award → statutory challenge/enforcement.	Article 299 signatory rule	GeM/manual/draft reform != constitutional or statutory amendment.
PROCUREMENT RAIL need/sanction → fair criteria/competition → reasoned award	PROTECTION FIREWALL	CPC notice	
Article 299 execution → performance/payment → CAG/audit.	Article 361	privilege are separate sources with separate limits.	

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 300A deprivation of private property only by authority of law.
- PROCUREMENT RAIL need/sanction → fair criteria/competition → reasoned award
- Article 299 execution → performance/payment → CAG/audit.

POWER / PROCEDURE

- ARBITRATION valid authorised clause → tribunal → award → statutory challenge/enforcement.
- PROTECTION FIREWALL
- Article 361

CHECK / LIMIT

- Article 299 signatory rule
- CPC notice
- privilege are separate sources with separate limits.

FEDERAL / RIGHTS IMPACT

- GeM/manual/draft reform != constitutional or statutory amendment.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Public contracts, property disposal, procurement and commercial action remain subject to equality, statutory power, appropriation, audit and judicial review.

08 ARTICLE 300A: LAWFUL ACQUISITION AND SEVEN SAFEGUARDS

EVERY PERSON: CONSTITUTIONAL RIGHT OUTSIDE PART III · DEPRIVATION ONLY BY AUTHORITY OF LAW. · K.T. PLANTATION (2011): PUBLIC PURPOSE; NO ILLUSORY COMPENSATION · VIDYA DEVI (2020): EXECUTIVE OCCUPATION IS NOT ACQUISITION · NOTICE; HEARING; REASONED DECISION; PUBLIC PURPOSE · FAIR COMPENSATION OR RESTITUTION; EFFICIENT PROCESS; CONCLUSION

CONSTITUTIONAL STATUS

- Every person; constitutional right outside Part III
- Deprivation only by authority of law

CASE TRAJECTORY

- K.T. Plantation (2011): public purpose; no illusory compensation
- Vidya Devi (2020): executive occupation is not acquisition

SEVEN SAFEGUARDS

- Notice; hearing; reasoned decision; public purpose
- Fair compensation or restitution; efficient process; conclusion

LIMIT

- No automatic single market-value formula in every statutory acquisition

MECHANISM / VERDICT — Article 300A joins authority of law to public purpose, fair acquisition procedure and effective restitution.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 300A joins authority of law to public purpose, fair acquisition procedure and effective restitution.

09 STATE SECRETS: EVIDENCE PRIVILEGE, RTI AND REVIEW

BSA SECTION 129: UNPUBLISHED STATE-AFFAIRS RECORDS · BSA SECTION 130: OFFICIAL CONFIDENCE AND PUBLIC-INTEREST HARM · RAJ NARAIN (1975): NO ABSOLUTE PRIVILEGE · S.P. GUPTA (1981): QUALIFIED OPENNESS · RTI(A): SPECIFIED PREJUDICIAL HARMS · RI2: PUBLIC-INTEREST OVERRIDE

EVIDENCE LAW

- BSA section 129: unpublished State-affairs records
- BSA section 130: official confidence and public-interest harm

OPEN-GOVERNMENT CASES

- Raj Narain (1975): no absolute privilege
- S.P. Gupta (1981): qualified openness

RTI ROUTE

- RI1(a): specified prejudicial harms
- RI2: public-interest override
- 22: inconsistent-law override

DECISION TEST

- Source; material; harm; severance; balance; reasons; review

MECHANISM / VERDICT — State secrecy is justified by proved public harm under the correct provision, not by an official label.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: State secrecy is justified by proved public harm under the correct provision, not by an official label.

10 REMEDY-FIRST GOVERNMENT LIABILITY DECISION TREE

VALID CONTRACT: CONTRACT OR ARBITRATION · RETAINED BENEFIT: SECTION 70 RESTITUTION · CIVIL WRONG: PRIVATE TORT · RIGHTS VIOLATION: PUBLIC-LAW COMPENSATION · PROPERTY DEPRIVATION: ARTICLE 300A · ILLEGALITY: JUDICIAL REVIEW.

PRIVATE-LAW ROUTES

- Valid contract: contract or arbitration
- Retained benefit: section 70 restitution
- Civil wrong: private tort

PUBLIC-LAW ROUTES

- Rights violation: public-law compensation
- Property deprivation: Article 300A
- Illegality: judicial review

PROCEDURAL SOURCES

- CPC 79 proper party; CPC 80 notice/urgency
- BNSS 218 specified prosecution sanction

FIREWALL

- Article 361; Article 299(2); CPC notice; sanction; privilege are distinct
- PYQ SPINE

MECHANISM / VERDICT — Start with the wrong, ingredients, forum and remedy; only then test the exact protection claimed.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Start with the wrong, ingredients, forum and remedy; only then test the exact protection claimed.

11 UPSC SYNTHESIS: CAPACITY WITH FORM, PROTECTION WITH REMEDY

UPSC SYNTHESIS · NO BLANKET IMMUNITY IN GOVERNMENT UNDER LAW · PRELIMS FIREWALL · 294/295 SUCCESSION · 296 OWNERLESS PROPERTY · 297 MARITIME RESOURCES · 298 CAPACITY · 299 FORM

PRELIMS FIREWALL → 294/295 succession → 296 ownerless property → 297 maritime resources → 298 capacity

CONSTITUTIONAL BASIS / ARTICLE

- PRELIMS FIREWALL
- 294/295 succession
- 296 ownerless property
- 297 maritime resources

POWER / PROCEDURE

- 298 capacity
- 299 form
- 300 suits
- 300A property right

CHECK / LIMIT

- Section 70 restitution != valid contract
- Section 80 notice != immunity.
- MAINS SPINE legal person → property/succession → capacity/form
- restitution → suit procedure → private tort

FEDERAL / RIGHTS IMPACT

- constitutional tort → procurement/arbitration → qualified reform.
- PYQ SPINE
- 2025 immunity statements test source separation, not blanket State immunity.
- VERDICT public power carries special form and protection; but remains legally answerable.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Government under law combines institutional continuity with source-specific limits, review and effective remedies.

E SUBORDINATE ENRICHMENT - ONLY AFTER THE COMPLETE CORE

EXTRA · OPTIONAL ADVANCED ENRICHMENT · FORCE MAJEURE AND CHANGE IN LAW · TERMINATION FOR PUBLIC INTEREST · BLACKLISTING AND PROCEDURAL FAIRNESS · PUBLIC-LAW REVIEW OF AN OTHERWISE CONTRACTUAL DECISION. · COMBAT, FOREIGN AFFAIRS AND CORE LEGISLATIVE/JUDICIAL FUNCTIONS · POLICING, CUSTODY AND COERCIVE POWER · ORDINARY TRANSPORT, PROPERTY AND COMMERCIAL OPERATIONS

OPTIONAL DOCTRINE / CASE

- force majeure and change in law;
- termination for public interest;
- blacklisting and procedural fairness;
- public-law review of an otherwise contractual decision.

ADVANCED LIMIT

- combat, foreign affairs and core legislative/judicial functions;
- policing, custody and coercive power;
- ordinary transport, property and commercial operations;
- every official wrong creates State liability;

COMPARATIVE NUANCE

- State liability excludes personal liability;
- a bona fide mistake automatically attracts damages; or
- mala fide conduct is protected merely because public office supplied the opportunity.
- waive every statutory or constitutional defence:

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels